

sell, the trustees have no power to sell during the life of A., however beneficial it may be to the parties interested in the trust (b). But if an estate be devised to A. for life, and after her decease to trustees upon trust to sell "as soon as conveniently may be after the *testator's* decease," the trustees, with the concurrence of A., can make a good title (c); and if the tenant for life and the trustees in remainder sell for one entire sum, it has been held that the purchaser will get a good title, and the tenant for life and the trustees may agree as amongst themselves how the purchase money is to be apportioned, or if they cannot agree it will be apportioned by the Court (d); [and the same principle was applied where the trustees of a reversion expectant on a lease concurred with the owner of the lease in selling the fee (e).] And generally trustees for sale of any aliquot part of an estate may join in a sale of the whole estate for one entire sum, and the purchase money, as amongst the respective owners, may be left to be apportioned as before (f); and where a testator's estate was under administration by the Court, and a house, part of that estate, was put up for sale with another house which was comprised in the testator's marriage settlement, in one lot, and the trustees of the settlement had leave to attend, it was held that as the sale of the entirety was beneficial, a good title could be made, and that the purchase-money could be apportioned in chambers (g). But a purchaser cannot be compelled to accept such a title if the separate interests of the *cestuis que trust* in such a joint sale be not brought to the sale with every advantage, or if the nature of the case be such that the purchase-money will not admit of apportionment upon any intelligible principle (h).

(b) *Johnstone v. Baber*, 8 Beav. 233; *Blacklow v. Laws*, 2 Hare, 40; *Mosley v. Hide*, 17 Q. B. 91; *Want v. Stallibrass*, 8 L. R. Ex. 175.

(c) *Mills v. Dugmore*, 30 Beav. 104.

(d) *Clark v. Seymour*, 7 Sim 67; [and see *Re Cooper and Allen's Contract*, 4 Ch. D. 802.]

[(e) *Morris v. Debenham*, 2 Ch. D. 540.]

(f) See *McCarogher v. Whieldon*, 34 Beav. 107.

(g) *Cavendish v. Cavendish*, 10 L. R. Ch. App. 319 [As to the power of trustees to grant a lease of two estates held upon different trusts, see *Tolson v. Sheard*, 5 Ch. D. 19.]

(h) *Rede v. Oakes*, 32 Beav. 555; 10 Jur. N. S. 1246; [4 De G. J. & S. 505; see *Re Cooper and Allen's Contract*, 4 Ch. D. 802.]